

2.	Green Flag Compliance vs. KC2 Group 23-01315404	Motion to Compel Production OFF CALENDAR- DISMISSED 3/27/25
3.	Estrada vs. General Motors, LLC 24-01424735	Motion to Compel Production OFF CALENDAR – Motion was continued to 7-11-25
4.	Protack vs. Montejo 24-01434462	Motion to Compel Plaintiff Michael D. Protack’s motion to compel discovery responses is CONTINUED to June 13, 2025, at 9:30 a.m. in Department C12. As Defendants have filed a notice of motion under Code of Civil Procedure (“CCP”) section 425.16, all discovery proceedings (including discovery motions) are automatically stayed until the notice of entry of the order ruling on that motion. (CCP § 425.16, subd. (g); see also <i>Britts v. Super. Ct.</i> (2006) 145 Cal.App.4th 1112, 1129.) The court has read and considered the document Plaintiff filed on 4/10/2025 at ROA #40. The court construes this document as a reply brief in support of Plaintiff’s motion to compel discovery responses at ROA #20. To the extent Plaintiff wishes to seek an order from the court permitting specified discovery to be conducted for good cause shown under CCP section 425.16(g), Plaintiff must file a properly noticed motion as required by that section. Litigants who choose to represent themselves must be treated in the same manner as represented parties and must follow correct rules of procedure. (<i>Nwosu v. Uba</i> (2004) 122 Cal.App.4th 1229, 1247-1248.) Plaintiff is encouraged to review all applicable portions of the Code of Civil Procedure, Evidence Code, California Rules of Court, and Orange County Superior Court Local Rules and procedures, including but not limited to Code of Civil Procedure section 1010, California Rules of Court rule 3.1112 et seq., and this Court’s Unlimited Civil Courtroom Schedule & Requirements. Defendants shall give notice.

5.	Santana vs. General Motors, LLC 23-01342122	Motion to Compel Deposition (Oral or Written) Plaintiff Melesio Sanchez Santana’s Motion to Compel the Deposition of Defendant General Motors, LLC’s Person Most Qualified is GRANTED. (Code Civ. Proc., § 2025.450.) Defendant is ORDERED to designate a person most qualified to testify as to each of topics 1-20 identified in Exhibit A of Plaintiff’s Amended Notice of Deposition of the Person Most Qualified for General Motors, LLC, dated 11/22/2024, and to make that person available for a deposition on a mutually agreeable date no later than 4/28/2025. Plaintiff has substantially complied with any meet and confer requirement. (See ROA #39 [Wood Decl.] ¶¶ 10-18, Exhs. 2-7; see also <i>Obergon v. Super. Ct.</i> (1998) 67 Cal.App.4th 424, 433-434 [inadequate meet and confer warrants denial of discovery only in egregious cases].) Defendant failed to respond to Plaintiff’s multiple requests for a mutually convenient date for the deposition, despite agreeing to produce a PMQ for deposition on examination topic nos. 1-5, 7, 10, and 20. Defendant’s objections the remaining examination topics are without merit. (See Code Civ. Proc., § 2017.010 [broad scope of discovery]; <i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 591 [relevance for purposes of discovery]; see also <i>Bowser v. Ford Motor Co.</i> (2022) 78 Cal.App.5th 587, 615-617 [manufacturer internal documents show its state of mind and knowledge of alleged defects]; <i>Donlen v. Ford Motor Co.</i> (2013) 217 Cal.App.4th 138, 143-144, 153 [relevance of evidence similar problems in other vehicles]; <i>Johnson v. Ford Motor Co.</i> (2005) 35 Cal.4th 1191, 1200, 1204, 1213 [manufacturer policies and procedures may show a willful failure to comply].) The court has also already overruled Defendants’ same objections with respect to Plaintiff’s Motion to Compel Further Responses to Requests for Production of Documents, Set One. (See ROA #63.) Defendant’s confidentiality and trade secret objections are also already addressed by the parties’ stipulated protective order, which the court signed and entered on 8/9/2024 (ROA #26). Plaintiff was not required to file a separate statement under California Rules of Court (CRC), rule 3.1345 because this motion seeks to compel only Defendant’s attendance at its deposition, which is not one of the types of motions for which a separate statement is required. (CRC 3.1345(a).)
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